

25STCV05670 25STCV05670

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV05670 Hearing Date: June 24, 2026 Dept: 512

HEARING DATE: Weds., June 24, 2026 JUDGE/DEPT: Mkrtchyan/25

CASE NAME: Lopez

et al. v. Portillo et al. COMP FILED: 02-28-25

CASE NUMBER: 25STCV05670 TRIAL DATE: None

NOTICE: OK

PROCEEDINGS: PLAINTIFFS' MOTIONS TO DEEM REQUESTS FOR

ADMISSIONS ADMITTED AND COMPEL RESPONSES TO FORM INTERROGATORIES, SPECIAL

INTERROGATORIES, AND REQUEST FOR PRODUCTION

MOVING PARTY:

Plaintiffs Maria Soledad Lopez and

Vanessa Flores

RESP. PARTY: None

MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AND COMPEL RESPONSES TO

FORM INTERROGATORIES, SPECIAL INTERROGATORIES, AND REQUEST FOR PRODUCTION;

REQUEST FOR SANCTIONS

(CCP §§ 2030.290;

2031.300; 2033.280)

TENTATIVE RULING:

Plaintiffs Maria Soledad Lopez and Vanessa Flores'

unopposed Motion to Deem Request for Admissions Admitted, unopposed Motion

to Compel Answers to Form Interrogatories unopposed Motion to Compel

Answers to Special Interrogatories, and unopposed Motion to Compel

Answers to Request for Production are GRANTED.

Defendant Lockwood is to provide verified and code-compliant responses within

30 days of this order.

Plaintiffs' Request for

Admissions, Nos. 1-13, against defendant Lockwood are deemed admitted.

Plaintiffs Maria Soledad

Lopez and Vanessa Flores' unopposed requests for monetary sanctions

against defendant Lockwood are GRANTED in the reduced total amount of \$997.50,

payable to Plaintiffs' attorney within 30 days of this order.

Moving party is ordered to

give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of June 17, 2026 [] Late [X]

None

REPLY: None

filed as of June 17, 2026 [] Late [X]

None

ANALYSIS:

I.

Background

On February 28, 2025,

Plaintiffs Maria Soledad Lopez and

Vanessa Flores ("Plaintiffs") filed an action against defendants Lauren

Lockwood (defendant "Lockwood"), Lesvia Patricia Portillo, Oscar Rolando

Portillo, Glenis Cardona, Cardona Investments a Real Estate Co., Golden Escrow,

and DOES 1-10 (collectively, "Defendants"). On July 2, 2025, Plaintiffs filed

the First Amended Complaint alleging breach of contract, fraud, negligence,

breach of fiduciary duty, unfair business practice, and conspiracy. (Complaint,

pp. 12-26.)

On December 1, 2025, Defendants

filed an Answer.

On May 11, 2026, Plaintiffs filed the instant Motions to Deem

Requests for Admissions (RFA) Admitted and Compel Responses to Form

Interrogatories, Special Interrogatories, and Request for Production (RPD) (collectively,

the "Motions") served on defendant Lockwood.

No Oppositions to the Motions were filed.

II.

Legal

Standard

A party must respond to

interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260,

subd. (a).) If a party to whom interrogatories are directed does not provide

timely responses, the requesting party may move for an order compelling responses

to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also

waives the right to make any objections, including one based on privilege or

work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no

time limit for a motion to compel responses to interrogatories other than the

cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§

2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.)

No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., §

2033.250, subd. (a).) “If a party to

whom requests for admission are directed fails to serve a timely response...(a)

[that party] waives any objection to the requests, including one based on

privilege or on the protection for work product...” (Code Civ. Proc., § 2033.280,

subd. (a).) “The requesting party may move for an order that the genuineness of

any documents and the truth of any matters specified in the requests be deemed

admitted, as well as for a monetary sanction under Chapter 7.” (Code Civ.

Proc., § 2033.280, subd. (b).)

III.

Discussion

A. Interrogatories, Request for

Production of Documents, and Requests for Admission

Plaintiffs contend that defendant Lockwood

failed to timely respond to the Form Interrogatories, Special Interrogatories

(collectively, Interrogatories), RPDs, and RFAs on or by the statutory

deadline. (Motion to Compel Form Interrogatories, p. 4; Motion to Compel

Special Interrogatories, p. 4; Motion to Compel RPDs, p. 4; Motion to Deem RFAs

Admitted, p. 3.)

Here, Plaintiffs’ counsel served defendant Lockwood

with the Interrogatories, RPDs, and RFAs by email on March 10,

2026. (Gonzalez Decl., ¶ 7, Exh. A.) As of April 28, 2026,

Plaintiffs' counsel had not received any responses, despite giving defendant

Lockwood's counsel a two-week extension by request and as a professional

courtesy. (Gonzalez Decl., ¶¶ 13-15, Exh. G, H.)

Thus, Plaintiffs are entitled to an

order compelling defendant Lockwood to provide responses without objections to

the Interrogatories and RPDs and an order deeming RFAs admitted.

B. Sanctions

Sanctions are

mandatory against the party, the person, or the attorney whose failure to serve

a timely response to the request necessitated the motion to deem request for

admissions as admitted and the motion to compel responses to interrogatories.

(See Code Civ. Proc., §§ 2030.290(c), 2033.280(c); see also Cal. Rules of

Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in

favor of a party seeking to compel discovery even though no opposition was

filed, the opposition was withdrawn, or the requested discovery was provided to

the moving party after the motion was filed].)

"A request for a

sanction shall, in the notice of motion, identify every person, party, and

attorney against whom the sanction is sought, and specify the type of sanction

sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Here, defendant Lockwood failed to

serve timely responses to Plaintiffs’ Interrogatories, RPD, and RFA by the

statutory deadline. Thus, sanctions are mandatory against defendant Lockwood.

(See Code Civ. Proc., §§ 2030.290(c), 2031.300(c), 2033.280(c);

see also Cal. Rules of Court, Rule 3.1348(a).)

The Court finds

Plaintiffs’ Notice of Motion for each motion complies with Code of Civil

Procedure section 2023.040.

Plaintiffs

request monetary sanctions of \$997.50, based on \$937.50 for each motion,

reflecting two hours incurred on drafting, preparing, and revising all Motions

and anticipates that it will take another half-hour to address this Motion with

the court at an hourly rate of \$375.00 per hour, plus the \$60.00 filing fee for

all Motions. (Gonzalez Decl., ¶¶

17-18.)

Given the similarity of the motions to

each other, the shared hearing date, the lack of Oppositions and Replies,

and the straightforward nature of the Motions, Plaintiffs' request for monetary

sanctions against defendant Lockwood is GRANTED in total amount requested of \$997.50,

reflecting 2.5 hours incurred at \$375.00 per hour plus \$60.00 in filing fees.

IV.

Conclusion

& Order

For the foregoing reasons,

Plaintiffs Maria Soledad Lopez and

Vanessa Flores' unopposed Motion to Deem Request for Admissions

Admitted, unopposed Motion to Compel Answers to Form Interrogatories,

unopposed Motion to Compel Answers to Special Interrogatories, and unopposed

Motion to Compel Answers to Request for Production are GRANTED. Defendant Lockwood is to provide verified and

code-compliant responses within 30 days of this order.

Plaintiffs' Request for

Admissions, Nos. 1-13, against defendant Lockwood are deemed admitted.

Plaintiffs Maria Soledad Lopez and Vanessa Flores'

unopposed requests for monetary sanctions against defendant Lockwood are

GRANTED in the reduced total amount of \$997.50, payable to Plaintiffs' counsel within 30 days of this

order.

Moving party is ordered to

give notice.